

Buckinghamshire County Council Act 1971

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ELIZABETH II



1971 CHAPTER xi

An Act to confer further powers on the County Council and on local authorities in the administrative county of Buckingham in relation to lands, and the local government, improvement, health and finances of the county and of the boroughs and districts therein; and for other purposes. [16th March 1971]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands, and the local government, improvement, health and finances of the administrative county of Buckingham (hereinafter referred to as “the county”) and that the powers of the county council of the county (hereinafter referred to as “the Council”) and of local and other authorities within the county should be enlarged and extended as provided in this Act:

(2) It is expedient that the other provisions contained in this Act should be enacted:

(3) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. (4) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Buckinghamshire County Council Act 1971.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Parks, cemeteries, etc.

Part IV.—Fire protection, public safety and public order.

Part V.—Finance.

Part VI.—Superannuation.

Part VII.—Miscellaneous.

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Interpretation. 3.—(1) In this Act the several words and expressions (other than those defined in subsection (2) of this section) to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1933 ” means the Local Government Act 1933;

1936 c. 49. “ the Act of 1936 ” means the Public Health Act 1936;

1937 c. 68. “ the Act of 1937 ” means the Local Government Superannuation Act 1937;

1946 c. 49. “ the Act of 1946 ” means the Acquisition of Land (Authorisation Procedure) Act 1946;

“ contravention ” includes failure to comply and
“ contravene ” shall be construed accordingly;

- “ the Council ” means the county council of the county;
- “ the county ” means the administrative county of Buckingham;
- “ the county fund ” means the county fund of the Council;
- “ daily fine ” means a fine for each day on which an offence is continued after conviction thereof;
- “ development ” has the same meaning as in the Town and Country Planning Act 1962; 1962 c. 38.
- “ district ” means a borough or an urban or rural district in the county;
- “ enactment ” includes an enactment in this Act or in any general or local Act or any order, byelaw, scheme or regulation for the time being in force within the county;
- “ the executive ” means the London Transport Executive;
- “ financial year ” means a period of twelve months ending on 31st March;
- “ highway ” has the same meaning as in the Highways Act 1959; 1959 c. 25.
- “ highway authority ” means—
- (a) in the case of a trunk road, the Secretary of State or, with his consent, the authority who are for the time being acting as his agent under the Highways Act 1959 with respect to that road;
- (b) in the case of a county road in the county, except a claimed county road, and in the case of any other highway for the time being maintained by the Council, the Council; and
- (c) in the case of any other highway, the local authority for the district in which the highway is situate;
- “ land ” includes land covered by water and any interest in land or any easement or right in, to or over land;
- “ local authority ” means the council of a district;
- “ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act 1952; 1952 c. 55.
- “ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946; 1946 c. 31.
- “ operational land ” in relation to the Post Office has the same meaning as in sub-paragraph (4) of paragraph 93 of Schedule 4 to the Post Office Act 1969 and means 1969 c. 48. in relation to statutory undertakers (other than the Post

PART I
—cont.

Office) land which is used for the purpose of the carrying on of their undertaking and land in which an interest is held for that purpose, not being land which, in respect of its nature and situation, is comparable rather with land in general than with land which is used, or in which interests are held, for the purpose of the carrying on of statutory undertakings;

“ parish council ” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish;

“ the railways board ” means the British Railways Board;

“ statutory undertakers ” means any company, body or person authorised by any enactment to supply electricity, gas or water in the county and includes the Post Office;

“ the superannuation fund ” means the superannuation fund maintained by the Council under the Act of 1937.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART II
LANDSSuspension
of restrictive
covenants.

4.—(1) If the Council—

(a) acquire land by agreement; or

(b) enter into an agreement to acquire land; or

(c) have acquired land by agreement before the passing of this Act; or

(d) appropriate (whether before or after the passing of this Act) land which has been previously acquired by agreement;

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon the Council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Council shall—

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating

that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the time, not being less than three months from the date of the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;

(b) on or before the date of the first publication of the said notice—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who appears to them, after reasonable inquiry, to be entitled to the benefit of the restriction to which the resolution relates; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister and a copy thereof to the Council within the period specified in the notice.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and after considering the report of the person who held the inquiry may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Council acquire or appropriate the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine not being earlier than the date on which the Council acquire or appropriate the land.

(7) If in the opinion of the Council there is doubt whether any such land as is mentioned in subsection (1) of this section is affected by any restriction to which that subsection relates or whether any such restriction is enforceable the Council may—

(a) in three successive weeks publish in one or more local newspapers circulating in the locality in which the land is

PART II
—*cont.*

situated a notice describing the land and stating generally the effect of this subsection and of subsections (8) and (9) of this section and specifying the time not being less than three months from the date of the first publication of the notice within which and the manner in which any person claiming to be entitled to enforce a restriction against the use of the land may intimate such claim to the Council and shall produce to them his documents of title in support of his claim;

(b) on or before the date of the first publication of the notice referred to in paragraph (a) of this subsection—

(i) serve a copy of that notice by registered post or the recorded delivery service on every person who they consider after reasonable inquiry may reasonably be expected to claim to be entitled to the benefit of a restriction against the land; and

(ii) affix a copy or copies of that notice to some conspicuous object or objects on the land.

(8) If any person is entitled to the benefit of a restriction against the land but fails to comply with the requirements of such notice, the restriction shall, so far as concerns such person and his successors in title, be deemed to have been suspended under the foregoing provisions of this section, but without prejudice to any claim for compensation under subsection (9) of this section.

1965 c. 56. (9) The Council shall pay compensation in accordance with the provisions of section 10 of the Compulsory Purchase Act 1965 to any person entitled to the benefit of a restriction suspended under the powers of this section who suffers loss in consequence thereof and the amount of such compensation shall be determined in case of dispute in accordance with the Land Compensation Act 1961.

1961 c. 33.

(10) Any restriction suspended under the powers of this section shall be unenforceable—

(a) so long as the Council are the owners of the land affected by the restriction and if compensation is paid by the Council under subsection (9) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person;

(b) if the Council convey the land to any person for any of the purposes of the Education Acts 1944 to 1970:

Provided that if such compensation is paid on the basis that the land may be used for a particular purpose, the restriction shall, after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts 1944 to 1970, remain unenforceable only so long as the land is used for that purpose.

(11) If the Council dispose of any land affected by the restriction suspended under the powers of this section they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(12) Nothing in this section shall apply to—

- (a) any restriction arising under a covenant granted to the National Trust for Places of Historic Interest or Natural Beauty restricting the development or use of land;
- (b) any restriction arising under the Green Belt (London and Home Counties) Act 1938 or the Water Resources Act 1938 c. xciii. 1963 or any agreement expressed to be made pursuant 1963 c. 38. to either of those Acts;
- (c) any restriction for—
 - (i) the protection of or for preventing interference with the use of or for securing access to operational land or apparatus of the railways board, the executive or any statutory undertakers or local authority or the Conservators of the River Thames;
 - (ii) the prevention of pollution of water which any statutory water undertakers are for the time being authorised to take;contained in any deed, wayleave agreement or other instrument;
- (d) any restriction expressed to be in favour of the Conservators of the River Thames in respect of their statutory functions relating to river pollution.

(13) In this section—

“the appropriate Minister” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Council have acquired or agreed to acquire or appropriated that land; and

“local authority” has the same meaning as in the Act of 1933.

PART II
—cont.Compulsory
acquisition
of
easements.

5.—(1) The Council by means of an order made by the Council and submitted to and confirmed by the confirming authority may be authorised to create in favour of the Council in, over or under any land which under any enactment the Council may be authorised to acquire compulsorily any easement or other right in, over or under or in relation to such land which, in the opinion of the confirming authority, is essential to the full enjoyment or use of any land or building owned or occupied, or intended to be acquired or occupied, by the Council for the purposes of any of their undertakings, powers or duties.

(2) The confirming authority shall not confirm any order under this section unless the confirming authority determine that the easement or right can be created without material detriment to the land in, over or under or in relation to which it is proposed to be created, or in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house.

(3) The Act of 1946 shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of the Act of 1946 and as if—

- (a) the expression “compulsory purchase of land” in the Act of 1946 included the creation of such easement or right as is mentioned in subsection (1) of this section; and
- (b) paragraphs 9 and 10 of Schedule 1 to the Act of 1946 applied to the creation of such easement or right as is mentioned in the said subsection (1) whether it is created in, over or under any land to which either of those paragraphs relates or in, over or under any other land in which the person entitled to the benefit of the paragraph has an easement or other right which if it were land would be land to which the paragraph relates.

(4) No such easement or right as is mentioned in subsection (1) of this section shall be deemed part of a house, building or manufactory or of a park or garden belonging to a house within section 8 of the Compulsory Purchase Act 1965.

1965 c. 56.

(5) In this section the expression “confirming authority” means the authority having power to authorise the purchase compulsorily of the land for the enjoyment or use of which the easement or other right is required or which would have had such power if such land were not already owned by the Council.

6.—(1) The Council and any person having an estate or interest in any land within the county may enter into an agreement which may provide for all or any of the following:—

PART II
—cont.
Agreements
with
developers.

- (a) determining the order in which development of that land shall be carried out as between the different parts of that land and as between the different parts of the development of any part of that land;
- (b) determining the time by which development of that land shall be completed or the times by which the parts of that development shall be completed;
- (c) providing that the estate or interest of that person in that land shall not be conveyed, leased or assigned except by way of mortgage or legal charge to any person unless the Council shall have first satisfied themselves that that person has or can command sufficient financial resources to carry out development of that land and to implement all the provisions of the agreement;
- (d) the dedication to the public of rights of way over that land or over a part or parts of any building or structure which is comprised in the development and the maintenance and cleansing of the public rights of way so dedicated including the maintenance and cleansing of the surface and the lighting of the building or structure over or above the public rights of way so dedicated and the maintenance of any support of the public rights of way so dedicated;
- (e) arrangements relating to the provision, maintenance or use of facilities for the parking of vehicles for or in connection with development of that land;
- (f) arrangements for the maintenance of open spaces provided in connection with development of that land;
- (g) any other related or consequential matters.

(2) (a) An agreement entered into under the preceding subsection may contain positive and negative covenants and whether they be positive or negative and notwithstanding that they may not enure, and may not be expressed to enure, for the benefit of any other land of the covenantee they shall, if registered in the local land charges register, be enforceable by the Council against the covenantor and all persons deriving title by, through or under the covenantor.

(b) In the event of the person who has entered into an agreement under the preceding subsection or any person deriving title by, through or under him failing to perform any of the positive

PART II
—cont.

covenants contained in the agreement, the Council may after giving not less than twenty-one days' notice of their intention so to do enter on the land and do the work in default and the expenses incurred by the Council in so doing shall be recoverable by them from the person in default.

(c) Except as may be expressly provided in the agreement an agreement entered into under the preceding subsection shall be enforceable and be deemed to be intended to be enforceable in perpetuity or for the duration of the estate or interest which the person entering into the agreement has in the land at the time when the agreement is entered into.

(3) The Council may take or acquire shares or other securities in any company incorporated in the United Kingdom with which an agreement is entered into under this section.

(4) Section 291 of the Act of 1936 shall have effect as if reference therein to that Act included a reference to this section.

Application
to local
authorities
of certain
provisions
of Part II.

7. The foregoing provisions of this Part of this Act shall apply to a local authority and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted references to the local authority and to their district respectively, and subject to any other necessary modifications.

Entry on
land for
certain
purposes.

8.—(1) Whenever it becomes necessary in either of the districts to which this section applies for the local authority or any of their officers, servants, contractors or workmen to enter, examine or lay open any lands (not being lands on which buildings for manufacturing purposes are erected) for the purpose of making plans, surveying, measuring, taking levels or making trial holes in connection with a function (other than a function as highway authority) for which they are for the time being or could under any enactment for the time being in force be authorised to acquire or use land compulsorily, and the owner or occupier of such land or premises refuses to permit the same to be entered upon, examined or laid open for the purposes aforesaid or any of them, the local authority may, after written notice to such owner or occupier, apply to a magistrates' court for an order authorising the local authority to enter, examine and lay open the said lands for the purposes aforesaid or any of them.

(2) If sufficient cause is shown for the application the court may make an order accordingly and on such order being made the local authority or any of their officers, servants, contractors or workmen may at all reasonable times between the hours of nine in the forenoon and six in the afternoon enter, examine or

lay open the lands mentioned in such order for such of the said purposes as are therein specified without being subject to any action or molestation for so doing:

PART II
—cont.

Provided that except in case of emergency no entry shall be made or works commenced under this section unless at least twenty-eight days' notice of the intended entry and of the object thereof be given to the occupier of the lands intended to be entered.

(3) Before making a trial hole in any land in exercise of the powers of this section the local authority shall give to the Gas Council and to the gas board, in whose area of supply the land in which it is proposed to make the trial hole is situated, not less than fourteen days' notice specifying the situation of the land in which it is proposed to make the trial hole:

Provided that failure by the local authority to give such notice shall not alter or prejudice the power of the local authority to enter any land in pursuance of an order made under this section.

(4) The local authority shall at their own expense make good and restore to their former condition any lands laid open by them or their officers, servants, contractors or workmen, and shall make good to the reasonable satisfaction of the owner or occupier of the lands entered all damage or loss sustained by him in consequence of such entry, examination or laying open and any dispute as to the amount of damage or loss so sustained as aforesaid shall, in default of agreement, be assessed by the Lands Tribunal, and the amount so assessed shall be recoverable in any court of competent jurisdiction.

(5) (a) The local authority shall not exercise the powers of this section in respect of—

- (i) any lands belonging to the railways board and used for the purposes of their undertaking except with the consent of the railways board; or
- (ii) any lands belonging to the executive and used for the purposes of their undertaking except with the consent of the executive; or
- (iii) any operational lands of any statutory undertakers except with the consent of the undertakers concerned; or
- (iv) any lands belonging to the Conservators of the River Thames and used for the purposes of any of their statutory functions except with the consent of the said conservators.

(b) A consent required by this subsection shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by a single arbitrator

PART II
—*cont.*

to be appointed by agreement between the parties or in default of agreement to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

(6) This section applies to the boroughs of Aylesbury and Slough.

Crown rights.

9. Nothing in this Part of this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained authorises the Council or a local authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

- (1) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (2) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

PART III

PARKS, CEMETERIES, ETC.

Golf courses.

10.—(1) A local authority to whom this section applies may within or outside their district provide a golf course, and for that purpose may provide such buildings, and execute such works, as may be necessary or expedient.

(2) References in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under the last foregoing subsection, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The local authority may either—

- (a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or
- (b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

PART III
—cont.

(4) The local authority may—

- (a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant, upon such terms and conditions, and for such period as they think fit, the right so to provide and sell refreshments;
- (d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor at any such golf course.

(5) The local authority may make byelaws for regulating the use of golf courses provided under this section, whether within or outside the district, and the conduct of persons using them or resorting thereto.

(6) No power conferred upon the local authority by this section shall be exercised in such a manner—

- (a) as to be at variance with an express trust subject to which land or a building is held, managed or controlled by the local authority, without an order of the High Court, or of the Charity Commissioners, or of the Secretary of State, or, where the trust instrument reserves to the donor or any other person the power to vary the trust, without the consent of the donor or that other person; or
- (b) as to contravene a covenant or condition subject to which a gift or lease of land or a building has been accepted by, or granted to, the local authority, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

(7) In this section “ golf course ” includes a driving range.

(8) The local authorities to whom this section applies are—

- (a) the mayor, aldermen and burgesses of the borough of High Wycombe;
- (b) the mayor, aldermen and burgesses of the borough of Slough;
- (c) the urban district council of Beaconsfield;
- (d) the urban district council of Bletchley;

PART III
—cont.

- (e) the urban district council of Chesham;
- (f) the urban district council of Newport Pagnell;
- (g) the urban district council of Wolverton;
- (h) the rural district council of Amersham;
- (i) the rural district council of Eton;
- (j) the rural district council of Newport Pagnell;
- (k) the rural district council of Wycombe.

Extension of
power to
maintain burial
grounds.

11.—(1) The powers of a burial authority in the county in relation to a burial ground maintainable by them shall include power—

- (a) to put, and keep, in order any memorial therein;
- (b) to level any grave therein;
- (c) to remove the whole or any part of a memorial therein;
- (d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the burial authority shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in their area, with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and
- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such person, can be ascertained.

(3) Each of the notices shall—

- (a) contain brief particulars of the burial authority's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the burial authority will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the burial authority before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Secretary of State unless the notice is withdrawn.

PART III
—cont.

(5) The burial authority may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless it is claimed and removed by the person claiming it or some person acting on his behalf within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the burial authority under this section, the burial authority may erect at their own expense, in substitution, a memorial of a value not exceeding twenty-five pounds.

(7) The burial authority shall cause a record to be made of each memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) (a) Nothing in the foregoing provisions of this section shall relieve the burial authority from any obligation to which they are subject to obtain for any work a faculty or licence of a consistory court.

(b) Subsections (2) to (4) of this section shall not have effect in relation to any work for which the burial authority obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section “grave” includes a grave space.

12.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

For
protection of
Common-
wealth War
Graves
Commission.

PART III
—cont.

“ Commonwealth war burial ” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 11 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the burial authority shall—

- (a) not later than the date upon which such notice is first published in a newspaper circulating in their area, serve upon the Commission a copy of any notice which the burial authority are required to publish pursuant to the said section 11;
- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 11;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

(3) The burial authority shall not in pursuance of the powers of the said section 11 remove any memorial placed or erected over any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty or licence of a consistory court after prior notification to the Commission of the application for any such licence or faculty;
- (c) that in the case of any headstone placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner including disposal of the memorial as shall be agreed in writing between the burial authority and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Secretary of State under subsection (4) of the said section 11 the burial authority shall, not later than the date on which the matter is referred to the Secretary of State, inform the Commission in writing of such reference and the Secretary of State shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to the Secretary of State.

PART III
—cont.

13. In the last two foregoing sections—

“burial authority” has the same meaning as in section 11 of the Burial Act 1900;

“burial ground” includes a cemetery;

“memorial” means any object erected, placed or planted for the commemoration of the dead, and includes any wall, kerb or railing protecting, enclosing or marking a grave or memorial.

Interpretation
for purposes
of last two
foregoing
sections.
1900 c. 15.

PART IV

FIRE PROTECTION, PUBLIC SAFETY AND PUBLIC ORDER

14.—(1) This section applies to—

(a) any building of which part (hereafter in this section referred to as “the storage part of the building”) is used, or intended to be used, for the storage for the purposes of sale or trade of any substance to which this section applies and part is used, or intended to be used, as a habitable room or a place in which any person works, if the part used, or intended to be used, as a habitable room or a place in which a person works communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;

Parts of
buildings
used for
storage of
flammable
substances.

(b) any substance which is highly flammable:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

(i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act 1928 or the Celluloid and Cinematograph Film Act 1922 apply; or

(ii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or

1928 c. 32.
1922 c. 35.

PART IV
—cont.

- (iii) any substance which does not, when tested by a method approved by the Secretary of State, give off a flammable vapour at a temperature of less than 80 degrees Fahrenheit (27 degrees Centigrade) and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(2) If the Council are of the opinion that the storage for the purposes of sale or trade of any substances to which this section applies in any part of a building to which this section applies in the county is—

- (a) in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or

(b) in such manner as to be liable to cause fire or explosion; they may by notice require the occupier of any part of the building to provide or fit (as the case may be) within such reasonable period as may be specified in the notice—

- (i) appropriate means of giving warning, in the case of fire, to persons occupying the building and for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;
- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building, being a part comprising a habitable room or a place in which any person works if that other part communicates directly or indirectly with, or is adjacent to, or constructed at a higher level than, the storage part of the building;
- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building, is unable to execute works for the purpose of complying with a notice given by the Council under subsection (2) of this section; or
- (b) considers that the owner of the building, or any other person having an interest therein, should contribute towards the cost of the execution of works as aforesaid, and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with the notice or, as the case may be, to direct the owner of the building, or any other person who appears to the court to have an interest therein, to contribute towards the cost of such works as aforesaid such an amount as appears to the court, in all the circumstances of the case, to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

PART IV
—cont.

(4) Upon compliance with a notice under subsection (2) of this section the Council shall forthwith issue to the person to whom the notice was given a certificate of such compliance.

(5) (a) If, after a certificate of compliance with a notice under subsection (2) of this section has been granted by the Council—

- (i) any material extension or material structural alteration of the building to which the certificate relates is intended to be made; or
- (ii) it is intended materially to increase the storage in the said building of any substance to which this section applies;

the occupier of any part of the building shall not less than twenty-one days before any such extension or alteration is made or any such storage is increased give notice of such intention to the Council who may serve a further notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Council shall amend the certificate or grant a new certificate in respect of the building, but if anything required to be provided in accordance with a further notice served under this subsection is not provided within such reasonable time as may be specified in the notice, the Council may cancel the certificate previously granted in respect of the building.

(6) All means of escape, fire alarms and means of extinguishing fire provided or fitted (as the case may be) under the requirements of paragraphs (i) and (ii) of subsection (2) of this section shall be properly maintained and kept free from obstruction.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936, as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Council to enforce.

(8) (a) An authorised officer of the Council may, in respect of any premises which he has entered in pursuance of the powers conferred by the said section 287, purchase and test samples of any

PART IV
—cont.

substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any test of a sample taken by an authorised officer of the Council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (9) of this section, unless the following requirements have been complied with, that is to say, the said officer shall forthwith after taking the sample notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container, which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(9) (a) Any person aggrieved by a requirement of the Council under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the notice is not reasonably sufficient for the purpose of complying with the requirements in the notice.

(b) Any person aggrieved by the refusal of the Council to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(10) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(11) In this section “ building ” where used in relation to the storage of substances therein includes the curtilage of the building and “ habitable room ” includes a room or place to which the public resort.

(12) Nothing in this section shall apply to—

- (a) premises which are subject to the Factories Act 1961, the Offices, Shops and Railway Premises Act 1963, the Licensing Act 1964, or the Private Places of Entertainment (Licensing) Act 1967, or regulations made under those Acts;

1961 c. 34.
1963 c. 41.
1964 c. 26.
1967 c. 19.

- (b) any building, or part of a building, by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster, or other apparatus for, or in connection with, the supply of gas.

15.—(1) As from the appointed day any person intending to install or place oil-burning equipment in any building in a district, whether the building is erected before or after the passing of this Act, or on any land in the district, shall give not less than fourteen days' notice to the local authority of his intention so to do.

(2) (a) The Council, if requested by the local authority to do so, may make byelaws for securing that, in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws, proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions prescribing in connection with the installation or placing of oil-burning equipment in any such building or on any such land as aforesaid, the works, apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement and requirements as to maintenance of any such works, apparatus, fittings and appliances.

(3) (a) Any oil-burning equipment installed or placed in any building or on any land in a district in accordance with plans and specifications submitted to, and passed by, the local authority shall, for the purposes only of this section, be deemed to be approved by the local authority as complying with the appropriate specification for such equipment contained in byelaws made under this section in respect of all matters shown in the plans and specifications so passed.

(b) If the local authority do not, within two months from the submission of plans and specifications of any equipment under this subsection, notify the person by whom they were submitted of the rejection or passing of the said plans and specifications, they shall be deemed to have passed them.

(4) If, in relation to the installation or placing of any oil-burning equipment in any building or on any land in a district, the local authority are satisfied, after consultation with the fire authority, that proper arrangements will be made for preventing or reducing danger from fire, they may, on the application of the person proposing to install or place such equipment, approve the installation or placing of the equipment notwithstanding that it may not comply with the appropriate specification for such equipment contained in byelaws made under this section.

(5) (a) Any person aggrieved by the refusal of the local authority to approve the installation or placing of any equipment

PART IV
—cont.

under subsection (4) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the local authority against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the local authority given under the byelaws.

(6) (a) If any person installs oil-burning equipment in any building or on any land in a district without giving notice to the local authority in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section other than pursuant to an approval granted under subsection (4) of this section he shall be liable to a fine not exceeding fifty pounds and if—

(i) that person after conviction of the contravention; or

(ii) any other person after notice of the conviction has been served on him by the local authority;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(7) Nothing in this section or any byelaws made thereunder shall apply to—

(a) the installation of any oil-burning equipment—

(i) in a house if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity of not more than 1,200 gallons; or

(ii) in any other premises if such tank or tanks has or have a total capacity of not more than 1,000 gallons; or

(b) the installation of any oil-burning equipment in any building in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force; or

(c) the installation of any oil-burning equipment by the railways board, the executive, the Central Electricity Generating Board, the Eastern, East Midlands and Southern Electricity Boards and the Eastern, East Midlands, North Thames and Southern Gas Boards for the purposes of their respective undertakings:

Provided that the exemption conferred by virtue of this paragraph shall not extend—

PART IV
—cont.

- (i) to a house; or
- (ii) to a building used as offices or showrooms other than, in the case of the railways board and the executive, a building so used which forms part of a railway station.

(8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act 1961 or the Offices, Shops and Railway Premises 1961 c. 34. Act 1963 apply on the coming into force in relation to those 1963 c. 41. premises of regulations made under either of those Acts and relating to the same subject-matter as this section.

(9) (a) For the purpose of this section “ the appointed day ” means such day as may be fixed by a resolution of a local authority subject to and in accordance with the provisions of this subsection.

(b) The local authority shall cause to be published in a local newspaper circulating in their district notice—

(i) of the passing of any such resolution and of the day fixed thereby; and

(ii) of the general effect of the provisions of this section;

and the day so fixed shall not be earlier than the expiration of one month from the date of the publication of the said notice.

(c) Either—

(i) a copy of any such newspaper containing any such notice; or

(ii) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(10) In this section—

“ apparatus and fittings ” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters;

“ boiler ” means a boiler, furnace, heater, oven or similar plant;

PART IV
—cont.

“house” means a dwelling-house, whether a private dwelling-house or not, and includes a flat and maisonette;

“oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catchpits, and any other equipment used for or in connection with the heating of the boiler;

“storage tank” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler.

Disposal of
dangerous
containers.

16.—(1) No person shall within the county dispose of or deposit any container (including a container attached to a vehicle or machine) which has been used for the storage of flammable, explosive or poisonous substances and is no longer used for that purpose unless he takes all such steps as may be reasonably necessary to prevent danger from the container to any person or property.

(2) If any person contravenes the provisions of subsection (1) of this section, he shall be liable to a fine not exceeding twenty pounds, and the local authority may take such steps as may be reasonably necessary to prevent danger from the container and may recover from that person the expenses incurred by them in so doing:

Provided that no proceedings shall be instituted for an offence under this section if the disposal or deposit of the container contravenes section 19 of the Civic Amenities Act 1967.

1967 c. 69.

(3) In this section “poisonous substance” means a substance specified in the Poisons List for the time being in force under section 17 of the Pharmacy and Poisons Act 1933.

1933 c. 25.

Policing and
control of
pedestrian
ways.

17.—(1) In this section and in the enactments specified in Schedule 1 to this Act as applied and having effect for the purposes of this section—

“the appropriate local authority” means the mayor, aldermen and burgesses of the borough of Aylesbury, the mayor, aldermen and burgesses of the borough of High Wycombe, and the mayor, aldermen and burgesses of the borough of Slough, as the case may be;

“pedestrian way” means a way or place laid out or otherwise suitable for public use on foot and declared to be such for the purposes of this section by resolution of the council of the appropriate local authority with the prior

consent in writing of all persons interested in the land comprising the pedestrian way at the time of such declaration.

PART IV
—*cont.*

(2) For purposes of, or relating to, criminal law, and the jurisdiction of the justices and of the police, a pedestrian way shall be deemed to be a highway.

(3) An appropriate local authority may make byelaws for regulating the following matters in relation to all pedestrian ways within their district or in relation to any such pedestrian way or any part thereof:—

- (a) the use of a pedestrian way by the public;
- (b) the times at which a pedestrian way may be closed to the public;
- (c) the conduct of persons using a pedestrian way;
- (d) the use of invalid chairs or other wheeled vehicles on a pedestrian way;
- (e) any structures or projections in or over any pedestrian way:

Provided that not less than two months before making byelaws in relation to any pedestrian way, or any part thereof, under this section, not being byelaws in relation to all pedestrian ways within their district, the appropriate local authority shall display in a conspicuous position on or adjacent to the pedestrian way a notice of their intention to consider the making of such byelaws, and such notice shall specify the place where a copy of the proposed byelaws may be inspected and the date by which any representation should be made to the appropriate local authority (not being less than six weeks after the date on which the notice was first displayed as aforesaid), and the appropriate local authority shall take into consideration any representations so made.

(4) Without prejudice to subsection (2) of this section the enactments specified in Schedule 1 to this Act shall apply and have effect for the purposes of this section as if each of those enactments were in terms re-enacted in this Act subject to the modifications set out opposite thereto in the said schedule.

PART V

FINANCE

18.—(1) The Council may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;

PART V
—cont.

- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Council shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

Power to
Council to
raise money
by issue of
bills.

19.—(1) In addition to the modes of borrowing prescribed by the Act of 1933 or any other enactment, the Council may raise money—

- (a) for any purpose for which the Council are authorised to borrow;
- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

by means of bills (to be called “ Buckinghamshire County Council bills ” and in this section referred to collectively as “ bills ” and separately as a “ bill ”) subject to and in accordance with the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
- (iv) Bills shall be issued under the authority of a resolution passed by the Council and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:

(v) The Council may make regulations providing for—

(A) the preparation and form and the mode of issue, payment and cancellation of bills;

(B) the issue of a new bill in lieu of one defaced, lost or destroyed;

(C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;

(D) the giving of a proper discharge on the payment of a bill ; and

(E) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:

(vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of three million pounds; or

(B) one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council; or

(C) one-fifth of the aggregate for the then current financial year of—

(i) the amount estimated to be produced by the levying of rates in the county during that financial year to meet liabilities falling to be discharged by the Council; and

(ii) the amount of the net expenses referred to in sub-paragraph (1) of paragraph 1 of Schedule 2 to the Thames Valley Police (Amalgamation) Order 1968;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph the Council may renew a bill at maturity:

PART V
—cont.

- (ix) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

(2) (a) The Council may at the request of a local authority to which this subsection applies raise money by means of Buckinghamshire County Council bills and shall lend such money to the local authority—

- (i) for any purpose for which the local authority are authorised to borrow; or
- (ii) in anticipation of the receipt of revenues for any purpose for which the revenues of the local authority may properly be applied:

Provided that the aggregate amount payable on bills issued under this subsection for the purpose of lending to the local authority current at any one time shall not (except by the amount payable on bills issued shortly before any other such bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount of so much of the gross rate income of that local authority as is retained by the local authority to meet liabilities falling to be discharged by the local authority.

(b) Any money lent to a local authority under this subsection shall be repaid to the Council by the local authority together with interest within the meaning of paragraph (vi) of subsection (1) of this section on or before the respective dates on which the money raised by means of the bills falls due for repayment.

(c) The aggregate amount payable on bills issued under this subsection current at any time shall not be taken into account in calculating the aggregate amount referred to in paragraph (vii) of subsection (1) of this section.

(d) This subsection applies to any local authority whose gross rate income is not less than three million pounds or such lesser amount as the Treasury may from time to time approve.

(3) In this section—

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one new penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

“revenues” has the same meaning as in section 218 of the Act of 1933;

PART V
—cont.

“signature” includes a facsimile of a signature by whatever process reproduced.

20. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
by bearer
bonds.

21.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

Power to
raise money
abroad.

(2) The powers conferred by the foregoing subsection shall be exercised only with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Council from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946.

1946 c. 58.

22. Nothing in the last two foregoing sections shall be taken as exempting the Council from the provisions of the Exchange Control Act 1947.

Saving for
Exchange
Control Act
1947.
1947 c. 14.

23.—(1) The Council may lend to any local authority and a local authority may borrow from the Council such money as the Council think fit to lend and as the local authority are authorised

Power to
Council to
lend money to
local
authorities,
etc.

PART V
—cont.

to borrow and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment thereof.

(2) Any agreement under this section may be made by resolutions passed respectively by the Council and by the local authority.

(3) Every sum borrowed by the Council for the purpose of this section shall be repaid within the period to expire not more than one year after that for which the same was lent by them to the local authority.

(4) The Council shall be entitled to charge such rate of interest in respect of any loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure, so far as is reasonably practicable to do so, that, having regard to all the circumstances existing at the time the loan is made, the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(5) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

(6) In this section “local authority” includes any authority having jurisdiction within the county being a local authority as defined by section 34 of the Local Loans Act 1875.

1875 c. 83.

General
insurance
fund.

24.—(1) The Council may establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses, damages, costs and expenses as may from time to time be specified in a resolution of the Council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance office against the whole or any part of all or any of the specified risks.

(3) When the insurance fund shall amount to the prescribed amount as hereinafter defined the Council shall discontinue the appropriations to that fund under subsection (4) of this section

but if that fund is at any time reduced below the prescribed amount the Council shall recommence and continue such appropriations until that fund be restored to the prescribed amount and if at any time the Council reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the county fund and, if any sums shall have been appropriated from the fund or moneys of any undertaking, department or service under the said subsection (4), to the fund or moneys of the undertaking, department or service, in such proportions as the Council consider equitable and any moneys so transferred to the county fund shall be apportioned between the several accounts of that fund in such proportions as the Council consider equitable.

PART V
—cont.

(4) The Council may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate accounts in the county fund or (in the case of an undertaking, department or service the accounts of which do not form part of the county fund) from the fund or moneys of that undertaking, department or service and shall show the same in their accounts under the separate heading or division in respect of the particular account, undertaking, department or service of the Council which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks, all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities, and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to the county fund.

(b) The Council shall in every financial year, so long as the fund is less than the prescribed amount, carry to the credit of that fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the last foregoing paragraph.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Council in respect of or on investments forming part of the insurance fund and carried to the county fund may be apportioned between the appropriate accounts of that fund or (in the case of an undertaking, department or service the accounts of which do not

PART V
—cont.

form part of the county fund) transferred to the fund or moneys of that undertaking, department or service in such shares or proportions as may be equitable.

(6) For the purposes of this section the Council may, if they deem it expedient, include in the specified risks, risks of accident to any teacher, caretaker or other person employed in any voluntary school in the county.

(7) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Council in respect of the specified risks in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Council may, with the sanction of the Secretary of State, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums so borrowed and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund or, as the case may require, out of the fund or moneys of the undertaking, department or service and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings, departments or services of the Council, and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(8) Any covenant or obligation binding on the Council to insure against any risk shall (except in so far as the terms of such covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the Council under subsection (1) of this section and that risk shall be one of the specified risks.

(9) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks, the insurance fund may be carried to and form part of any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953, or (if the Council so determine) shall be applied in such other manner as the Secretary of State may approve towards the discharge of any debt of the Council or otherwise for any purpose for which capital money may properly be applied.

(10) In this section—

“ insurance office ” means—

(a) an insurance company; or

(b) an underwriter being a member of an association of underwriters;

PART V
—cont.

“prescribed amount” means such sum as may from time to time be prescribed by the Council; and

“statutory securities” means any securities in which trustees are for the time being authorised by law to invest trust moneys or in which the Council are by virtue of this Act authorised to invest money forming part of the superannuation fund.

25. The following section shall be substituted for section 78 (Investment of superannuation fund) of the Buckinghamshire County Council Act 1957:—

“Investment of superannuation fund.

78.—(1) In its application to the Council subsection (3) of section 21 of the Local Government Superannuation Act 1937 shall have effect as if for the obligation to invest as mentioned in that subsection moneys forming part of but not for the time being required to meet payments out of the superannuation fund there were substituted an obligation to invest such moneys as follows, namely:—

Amendment of powers of investment of superannuation fund.

1957 c. xviii.
1937 c. 68.

- (a) in or upon any investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part thereof; or
- (c) in or upon any of the stocks, bonds, mortgages or securities of any municipality, county or district council or local or public authority or board in the United Kingdom or any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or the legislature concerned to issue the same; or
- (d) in or upon any stocks, shares, bonds, mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by

PART V
—cont.

- the United Kingdom government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or
- (e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or
- (f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world; or
- (g) in or upon any guaranteed, preference or ordinary stock or shares or any preferred or deferred or other stock or shares of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or
- (h) in the purchase, whether alone or jointly or in common with any other person or corporation, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands, or of any share or interest in such immovable property, including any interest in such immovable property comprised in a building agreement providing for the grant of a lease of such property contingent on the erection or completion of the building specified in such agreement; or
- (i) in the advance of money upon the security of—
- (i) immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or
 - (ii) any legal estate or interest in immovable property comprised in a building agreement as specified in paragraph (h) of this subsection;
- and in any such case whether the security be taken by a separate and distinct mortgage or security made exclusively to the Council, or by a mortgage or security made jointly to the Council and any other person; or
- (j) in undertaking or financing whether alone or jointly with any other person—
- (i) the erection of a new building or the improvement or extension of an existing building; or

- (ii) building operations or other development;
on land outside the county—
 - (A) belonging to the Council or to any other person; or
 - (B) which is, or will be, held jointly by the Council and any other person; or
- (k) upon the security of freehold or leasehold ground rents, land charges or rentcharges;
with the like power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that the investment of any part of the superannuation fund in any investment of the nature specified in paragraph (g) of this subsection shall be subject to the following qualifications:—

- (i) no investment shall be made in any company which has not paid a dividend on its ordinary stock or shares of at least 5 per cent. per annum for each of the four years immediately preceding the date of investment, or if the company has been incorporated or registered or has been trading for less than four years before that date unless—
 - (A) the company has paid such a dividend on its ordinary stock or shares for each of the years since incorporation or registration or commencement of trading as the case may be; or
 - (B) in the case of a company which has not been incorporated or registered or trading for at least one year before the date of investment but which has been formed by the amalgamation of other companies each of such other companies has paid a dividend on its ordinary stock or shares of at least 5 per cent. per annum for each of the four years immediately preceding the date of the amalgamation;
- (ii) no investment shall be made at any time when the value of all the investments made under the said paragraph (g) which form part of the superannuation fund equals or exceeds three-quarters of the total value of the assets of that fund.

(2) All costs, charges and expenses incurred by the Council in investing moneys forming part of the superannuation fund or otherwise in relation thereto shall be paid by the Council out of the superannuation fund.

PART V
—cont.

(3) For the purposes of subsection (1) of this section, the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(4) In this section—

‘ recognised stock exchange ’, in its application to the United Kingdom, means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act 1958;

1958 c. 45.

‘ the superannuation fund ’ means the superannuation fund maintained by the Council under the Local Government Superannuation Act 1937.”

1937 c. 68.

Application
to local
authorities
of certain
provisions of
Part V.

26.—(1) The provisions of this Part of this Act, mentioned in subsection (2) of this section, shall apply to a local authority and for that purpose those provisions shall have effect as if for references therein to the Council there were substituted references to the local authority and subject to any other necessary modifications.

(2) The provisions hereinbefore referred to are—

Section 18 (Power to borrow);

Section 20 (Power to raise money by bearer bonds);

Section 21 (Power to raise money abroad);

Section 22 (Saving for Exchange Control Act 1947);

Section 24 (General insurance fund).

(3) In its application to a local authority the said section 18 shall have effect as if paragraph (b) of subsection (1) were omitted.

(4) In its application to a local authority the said section 24 shall have effect as if—

(a) for the words “ county fund ” there were substituted the words “ general rate fund of the district ”;

(b) in subsection (3) after the word “ appropriated ” there were inserted the words “ from the housing revenue account or ” and after the words “ the said subsection (4) ” there were inserted the words “ to the housing revenue account or, as the case may require, ”;

(c) in subsection (4) after the word “ service ” where that word secondly occurs there were inserted the words “ and, if they think fit from the housing revenue account ”;

(d) the following proviso were added to subsection (4):—

“ Provided that any payments by contribution from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the local authority properly relates to the specified risks arising from the purposes for which that account is kept.”.

(5) Notwithstanding the foregoing provisions of this section the said section 24 shall not apply to the mayor, aldermen and burgesses of the borough of Buckingham.

PART V
—cont.

(6) Subject to the consent of the Secretary of State the provisions of section 78 (Investment of superannuation fund) of the Buckinghamshire County Council Act 1957 shall apply to a local authority maintaining a superannuation fund and for that purpose those provisions shall have effect as if for references therein to the Council and to the county there were substituted references to such local authority and to the district of such local authority respectively and subject to any other necessary modifications.

PART VI

SUPERANNUATION

27.—(1) In this Part of this Act except as otherwise expressly provided or unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings and—

Interpretation
of Part VI,
etc.

“contributor” means a contributor to the fund as respects whom the Council are the employing authority;

“death grant” and “transfer value” have in relation to a contributor the meanings assigned to them respectively by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Council under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 29 (Power to require designated sums to be paid to trustees), section 30 (Transfers of employment), section 31 (Application of certain provisions to other employing authorities) and section 32 (Application of certain provisions to local authorities) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the passing of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

PART VI
—cont.

Benefits in
certain cases
of premature
retirement.

28.—(1) Where, after the passing of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

(2) Where, after the passing of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (a) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (b) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, as from the date of his death the like benefits shall be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953 and of any rules made thereunder a

person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

PART VI
—cont.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954 as the case may be.

29.—(1) A contributor may at any time by notice in writing to the Council, given in such form as the Council may approve, direct that—

Power to
require
designated
sums to be
paid to
trustees.

(a) the provisions of this section shall apply to the amount (if any) which would otherwise be payable to his estate by way of death grant or by way of return of contributions to the fund; and

(b) any such amount (hereafter in this section and in Schedule 2 to this Act referred to as “the designated sum”) instead of being paid to his estate shall be paid to such responsible persons (not being less than two nor more than four in number and hereafter in this section and in the said Schedule 2 referred to as “the trustees”) as shall be appointed for that purpose by the Council, to be held upon the trusts and with and subject to the powers and provisions in force under the said Schedule 2 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts and with and subject to the powers and provisions in force under the said Schedule 2 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 2 may from time to time be varied by resolution of the Council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Council after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

PART VI
—cont.

(5) In this section and in the said Schedule 2 “ contributor ” includes any person who on or after the date of the passing of this Act is a contributor to the fund and “ former contributor ” shall be construed accordingly.

Transfers of
employment.

30.—(1) The Council may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment under the Council in order to enter an employment (in this paragraph referred to as “ the new employment ”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment under the Council:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment under the Council from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme either with or without modifications after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force, may make any amendments or modifications of that superannuation scheme that may be desirable to facilitate the operation of any scheme made by the Council under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of that subsection.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or 1948 c. 33. by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

31.—(1) An authority to whom this section applies may by resolution adopt all or any of the foregoing sections of this Part of this Act and Schedule 2 to this Act as from such date, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to the authority as if—

(a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;

(b) any reference to the Council in section 28 (Benefits in certain cases of premature retirement) or paragraphs (a) and (b) of subsection (1) of section 30 (Transfers of employment) of this Act was a reference to the authority.

(2) Where in pursuance of the foregoing subsection any provisions are adopted by an authority to whom this section applies, then any reference in those provisions to the passing of this Act shall be construed in relation to the authority as a reference to the date of the passing of the resolution.

(3) This section applies to—

(a) a local authority which does not maintain a superannuation fund under Part I of the Act of 1937;

PART VI
—*cont.*

1953 c. 25.

- (b) the Thames Valley Police Authority;
- (c) the Buckinghamshire Magistrates' Courts Committee;
- (d) the Buckinghamshire County Probation and After-Care Committee;
- (e) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Local Government Superannuation Act 1953;
- (f) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

Application of
certain
provisions to
local
authorities.

32.—(1) Where a local authority or a combination of local authorities maintains a superannuation fund under Part I of the Act of 1937 any such local authority may by resolution adopt all or any of the foregoing sections of this Part of this Act and Schedule 2 to this Act as from such date, as may be specified in such resolution, and where any provisions are so adopted they shall apply and have effect in relation to that local authority as if—

- (a) any reference therein to the Council was a reference to that local authority;
- (b) any reference therein to a contributor was a reference to a contributor to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937 and (except in section 29 (Power to require designated sums to be paid to trustees) of and Schedule 2 to this Act) as respects whom that local authority are the employing authority; and
- (c) any reference therein to the fund was a reference to the superannuation fund maintained by that local authority or combination of local authorities under Part I of the Act of 1937.

(2) If any such local authority as is referred to in subsection (1) of this section adopts all or any of the foregoing sections of this Part of this Act and Schedule 2 to this Act, any other employing authority in relation to which that local authority or combination of local authorities are the appropriate administering authority may by resolution adopt all or any of the foregoing sections of this Part of this Act and Schedule 2 to this Act as from such date as may be specified in such resolution and where any provisions are so adopted any reference therein to a contributor shall be a reference to a contributor to the superannuation fund maintained by the local authority or combination of local authorities in relation to which such employing authority are the employing authority.

PART VII

MISCELLANEOUS

33. At any time after a period of six years from the date of the receipt by the Council of an application for permission for development the Council may, having made the necessary entries in the register in accordance with the provisions of article 14 of the Town and Country Planning General Development Order 1963, and retained the application and the copy of the plan or plans approved in connection therewith, together with any industrial development certificate or office development permit issued in connection therewith, destroy any of the other documents received by them in connection with the application.

Destruction of documents connected with applications for permission for development.
S.I. 1963/709.

34.—(1) The Council may make and retain microfilm recordings of documents of the Council.

Microfilming of documents.

(2) Notwithstanding anything contained in any enactment, the Council may destroy any documents of the Council other than minute books, of which they have made and retained microfilm recordings:

Provided that—

(a) the Council shall not under this section destroy records deposited with them under the Public Records Act 1958, or acquired or accepted by them under section 2 of the Local Government (Records) Act 1962;

1958 c. 51.
1962 c. 56.

(b) the Council shall afford to the public equal rights of access to a microfilm recording made under this section as would have been available, if this section had not been enacted, in respect of the document so recorded.

(3) An enlargement of a microfilm recording of a document made in pursuance of this section shall be deemed for all purposes to be a copy of that document.

(4) Notwithstanding anything contained in any enactment or any rule of law an enlargement of a microfilm recording of a document which has been destroyed in pursuance of this section shall be receivable in evidence for any purpose for which the document would have been receivable in any proceedings in any court in England or Wales if the clerk certifies that—

(a) the document has been destroyed; and

(b) a microfilm recording of the document has been made; and

(c) the enlargement is an enlargement of that microfilm recording.

PART VII
—cont.

(5) In this section unless the context otherwise requires—

“document” means the whole or part of a register, book, map, plan or other document and includes a notice, licence, certificate, scheme or order made, passed or granted by the Council or any committee of the Council, and references to documents of the Council are references to documents belonging to or permanently in the possession of the Council;

“microfilm recording” means a reproduction of a document on film which is a product of photography or any process akin to photography and is in general beyond legibility with the naked eye.

Electronic
or mechanical
equipment.

35. At any time after the Council have provided any electronic or mechanical data processing equipment for the purposes of all or any of their work, they may, by agreement with any local authority or other person, use, or permit that local authority or person to use, the said equipment for the purposes of that local authority or person and may make such charges as may be agreed for the use of the said equipment.

Notice of
alteration of
rents without
notice to quit.
1968 c. 42.

36. Section 12 of the Prices and Incomes Act 1968 (which enables a local authority within the meaning of that section to increase the rent payable to the authority for houses let on weekly or other periodical tenancy whose rents fall to be carried to the authority's housing revenue account without the tenancy being terminated) shall apply to all houses within the meaning of the Housing (Financial Provisions) Act 1958 belonging to the Council as if in subsection (1)—

(a) the words “on a weekly or other periodical tenancy” were omitted;

(b) after the word “increased” there were inserted the words “or reduced”; and

(c) after the word “increase” there were inserted the words “or reduction”;

and as if, in subsection (4), the definition of “local authority” included the Council, for the definition of “local authority houses” there were substituted the words “‘local authority houses’ are houses of the local authority”, and after the word “increase” there were inserted the words “or reduction”.

Registration
of persons
seeking
exchange of
houses.
1953 c. 23.

37. Notwithstanding anything in the Accommodation Agencies Act 1953 a local authority may demand and accept charges in consideration of registering or undertaking to register or renew the registration of the name and requirements of any person seeking the exchange or transfer of a tenancy of a house:

Provided that such charges shall not exceed 50p in respect of each registration or undertaking to register and 50p in respect of each renewal of a registration.

PART VII
—cont.

38.—(1) If in any district any person exhibits or permits to be exhibited on any vehicle (not being a hackney carriage licensed to ply for hire or a public service vehicle) any sign (not being a sign required to be exhibited by virtue of section 14 of the Vehicles (Excise) Act 1962) or advertisement which might reasonably be taken to indicate that the vehicle is a hackney carriage licensed to ply for hire he shall be liable to a fine not exceeding twenty pounds.

Misleading
signs on
motor vehicles.

1962 c. 13.

(2) Without prejudice to the generality of the provisions of subsection (1) of this section, if in the district any person exhibits or permits to be exhibited on any vehicle (not being a hackney carriage licensed to ply for hire or a public service vehicle) which is offered or let for hire with the services of a driver any sign or advertisement containing the words “ cab ”, “ taxi ”, “ taxi-cab ” or “ for hire ” he shall be deemed to have contravened the provisions of that subsection.

39.—(1) The powers of a parish council under section 46 of the Road Traffic Regulation Act 1967 to provide parking places for bicycles and motorcycles shall extend so as to authorise a parish council to provide parking places for other vehicles (whether or not consisting of buildings) in the circumstances and subject to the conditions prescribed by that section and by section 47 of the said Act of 1967.

Extension of
parish
councils'
powers to
provide
parking
places.

1967 c. 76.

(2) For the purpose of exercising the powers of the said section 46 as extended by the foregoing subsection the following provisions of the said Act of 1967 shall apply to a parish council as they apply to a local authority, namely:—

Subsections (5) and (8) of section 28; subsections (1) to (3), (5) to (7) and (9) of section 29; section 30; subsections (1) to (4), (5) and (6) of section 31; and section 96.

(3) The provisions of section 48 of the said Act of 1967 shall apply to the exercise by a parish council of the powers of this section as they apply to such a council in the exercise of the powers of section 46 of that Act and section 49 of the said Act shall have effect accordingly.

40.—(1) The highway authority may expunge or remove any picture, letter, sign or other mark painted or otherwise inscribed or affixed upon the surface of a highway or upon a tree, structure or works on or in a highway contrary to paragraph (cc) of subsection (1) of section 117 of the Highways Act 1959.

Defacing of
road surface,
etc.

1959 c. 25.

PART VII
—cont.

(2) The court by which a person is convicted of an offence under the said section 117 may, whether or not it imposes a fine, by order require him to pay to the highway authority any expenses incurred by them in re-erecting, restoring or reinstating a traffic sign, milestone or direction post pulled down, damaged or obliterated contrary to paragraph (c) of subsection (2) of the said section or incurred by them under subsection (1) of this section.

Street
cleansing.
1967 c. 76.

41. Between one hour after sunrise and one hour before sunset the provisions of any order made under or having effect by virtue of the Road Traffic Regulation Act 1967 prohibiting the driving of vehicles on any specified road in the county otherwise than in a specified direction and any provisions applicable to the direction to be followed by vehicles using roads provided with dual carriageways shall not apply to any mechanically propelled and operated street cleansing vehicle provided by a local authority when engaged in the cleansing of any street.

Sale of food
and articles
on verges, etc.

42.—(1) No person (other than a person selling, offering or exposing for sale or depositing for sale any food, goods, provisions, articles or things at any market or fair for which he has paid a toll, stallage or rent) shall in the county—

- (a) sell or offer or expose for sale; or
- (b) deposit for sale;

on the verge of or on any lay-by in a road to which this section applies or on any roadside waste adjacent thereto or on any part of a field adjacent thereto within 15 yards thereof any food, goods, provisions, articles or things in such a manner that any danger or obstruction is caused or is likely to be caused to persons or vehicles using such road or the footpath adjacent to such verge or roadside waste by—

- (i) such sale, or offer or exposure for sale, or deposit for sale; or
- (ii) a person buying or examining such food, goods, provisions, articles or things; or
- (iii) a vehicle which has been used by such last-mentioned person.

(2) If any person contravenes the provisions of this section he shall be liable to a penalty not exceeding ten pounds.

(3) (a) This section applies to roads in the county of any of the following descriptions:—

- (i) all trunk roads and roads which are classified as principal roads by the Secretary of State under the Local Government Act 1966;

- (ii) any other county road, or part of a county road, to which the highway authority may by order apply this section.

(b) An order under this section shall not be made without the consent of the Secretary of State:

Provided that if no objections are duly made in accordance with the provisions of this subsection or if any so made are withdrawn the consent of the Secretary of State shall not be required and the order shall have effect without modification.

(c) Before making application for an order under this subsection, the highway authority shall publish once at least in each of two successive weeks in a local newspaper circulating in the locality in which the road is situated a notice stating the general effect of the intended order, and stating that within a period specified in the notice (not being less than twenty-eight days from the first publication of the notice) any person may object to the application by sending notice of his objection and of the grounds thereof to the Secretary of State and by sending a copy thereof to the highway authority.

(d) If, before the expiration of the period specified in the notice, any objection to the application is received by the Secretary of State from any person appearing to him to be affected, the Secretary of State shall, before consenting to the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.

(4) Nothing in this section shall apply to—

(a) the sale of food, goods, provisions, articles or things from a vehicle used as a travelling shop for the purpose of itinerant trading;

(b) any fixed or movable shelters or other accommodation for servants of the executive or London Country Bus Services Limited erected, maintained or placed by the executive or London Country Bus Services Limited under the provisions of section 65 of the London Passenger Transport Act 1938;

1938 c. xcii.

(c) any building erected or work constructed with the consent of the Secretary of State in pursuance of section 194 of the Law of Property Act 1925 or of any other statutory provision or any scheme made pursuant to a statute;

(d) the sale of food, goods, provisions, articles or things from any premises used as a shop pursuant to a permission granted or deemed to have been granted under the provisions of the Town and Country Planning Acts 1962 to 1968 or any order or regulation made

PART VII
—cont.

1968 c. 72.

thereunder or in respect of which an enforcement notice cannot be served under section 15 of the Town and Country Planning Act 1968 by virtue of subsection (3) of that section;

(e) the sale of food, goods, provisions, articles or things from any private property by or with the consent of the owner of such property and with the permission of the highway authority; or

1952 c. 55.

(f) the sale by the occupier of land used for agriculture or horticulture, and from such land, of the produce thereof, unless in relation to any particular location on such land a magistrates' court, on the complaint of the highway authority under section 43 of the Magistrates' Courts Act 1952, determines because the use thereof for the purpose of such sale would adversely affect the safety of persons using the adjoining road that the exemption conferred by this paragraph shall not apply to that location or that the said exemption shall not apply until any condition imposed by the court in relation to access to or facilities for the parking of the vehicles of persons likely to frequent the said location in connection with such sale has been complied with.

(5) (a) Where an application is made to a highway authority for a permission under paragraph (e) of subsection (4) of this section then unless within twenty-eight days from the date of the receipt of the application the highway authority give notice to the applicant of their decision on the application the provisions of paragraph (b) of this subsection shall apply in relation to the application as if the highway authority had refused to grant the permission applied for.

(b) Any person aggrieved by the refusal of the highway authority to grant permission under paragraph (e) of subsection (4) of this section may appeal to a magistrates' court and on any such appeal the court may, if it appears to them that adequate facilities exist or will be provided for the parking of the vehicles of persons likely to frequent the property in question and that the use of such property will not otherwise adversely affect the safety of persons using the adjoining road or footpath, by order direct the highway authority to withdraw such refusal and to issue the permission for which application was made.

(6) In this section the expression "private property" does not include common land.

1957 c. xviii.

(7) Section 41 (Sale of food and articles on verges, etc.) of the Buckinghamshire County Council Act 1957 is hereby repealed.

43.—(1) Notwithstanding anything contained in any enactment but subject to the provisions of subsection (2) of this section no person shall be entitled to enter upon, break open or interfere with a street to which this section applies or the carriageways or footways of the same for the purpose of laying down any apparatus or executing any work therein, thereon or thereunder except with the consent of the corporation and in accordance with such terms and conditions as the corporation may determine.

PART VII
—cont.

No apparatus
to be laid
in certain
roads.

(2) The provisions of subsection (1) of this section shall not apply to any apparatus of, or the execution of any work by, the Central Electricity Generating Board, the Southern Electricity Board or the Post Office but in relation to those undertakers the provisions of subsection (7) of section 4 of the Public Utilities Street Works Act 1950 shall have effect in relation to placing, 1950 c. 39. altering or changing the position of any apparatus in a street to which this section applies as if for the words “ a street which is carried by or goes under a bridge, if he is satisfied that the execution thereof would be likely to affect injuriously the structure or stability of the bridge ” there were substituted the words “ a street to which section 43 (No apparatus to be laid in certain roads) of the Buckinghamshire County Council Act 1971 applies, if he is satisfied that the execution thereof would be likely to affect injuriously the structure or stability of the street or of any building or structure of which it forms part or to which it is attached or would be unreasonable having regard to any accommodation provided for apparatus of the undertakers whether in the street or elsewhere ”.

(3) This section applies to any street in the borough of Slough constructed above the level of the ground for the purpose of giving access to premises and within the area bounded on the north by the Paddington-Bristol railway line of British Railways, on the east by Uxbridge Road and Upton Road, on the south by Albert Street and Chalvey Road East and on the west by the Slough-Windsor railway line of British Railways.

(4) In this section “ the corporation ” means the mayor, aldermen and burgesses of the borough of Slough.

44.—(1) The provisions of this Part of this Act mentioned in subsection (2) of this section shall apply to a local authority and for that purpose those provisions shall have effect as if for references therein to the Council there were substituted references to the local authority and subject to any other necessary modifications.

Application
to local
authorities
of certain
provisions of
Part VII.

(2) The provisions hereinbefore referred to are:—

Section 33 (Destruction of documents connected with applications for permission for development);

PART VII
—cont.

Section 34 (Microfilming of documents);

Section 35 (Electronic or mechanical equipment);

Section 36 (Notice of alteration of rents without notice to quit).

(3) In its application to a local authority the said section 35 shall have effect as if for the words “any local authority” there were substituted the words “the Council, any other local authority” and after the word “permit” and the words “purposes of” where those words secondly occur there were inserted the words “the Council”.

(4) In its application to a local authority the said section 36 shall have effect as if the words “the definition of ‘local authority’ included the Council” were omitted.

PART VIII

GENERAL

Confirming
authority for
byelaws.

45. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Local inquiries.

46.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

Restriction on
right to
prosecute.

47. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Council, the highway authority or the local authority, as the case may be.

Appeals.

48.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Council or a local authority against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action, then, until the time for appealing has expired or, if an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution, no proceedings shall be

taken in respect of any failure to execute the work, or take the action, nor shall the Council or the local authority themselves execute the work or take the action.

PART VIII
—cont.

49.—(1) Section 265 of the Public Health Act 1875 shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if references in that section to a member of a local authority included reference to a member of a committee or of a sub-committee of the Council or of a local authority.

Protection of
members and
officers from
personal
liability.
1875 c. 55.

(2) Section 99 (Protection of members and officers from personal liability) of the Buckinghamshire County Council Act 1957 shall have effect as if the following were added thereto:—

1957 c. xviii.

“and as if references in that section to a member of a local authority included reference to a member of a committee or of a sub-committee of the Council or of a local authority”.

50.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 3 to this Act shall have effect as if references therein to that Act included references to this Act except section 39 (Extension of parish councils' powers to provide parking places).

Application
of general
provisions of
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to Part IV (Fire protection, public safety and public order) of this Act.

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included a reference to section 6 (Agreements with developers) and to the said Part IV of this Act.

51. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act.

Costs of Act.

SCHEDULES

Section 17.

SCHEDULE 1

ENACTMENTS APPLIED TO PEDESTRIAN WAY

Chapter (1)	Short title (2)	Provisions applied (3)	Modifications (4)
7 & 8 Eliz. 2 c. 25	Highways Act 1959	Section 121 (Penalty for wilful obstruction)	In subsection (1) for the word "highway" there shall be substituted the words "pedestrian way".
		Section 127 (Penalty for depositing things, or pitching booths, etc., on highway)	Paragraph (a) shall be omitted; and in para- graphs (b) and (c) for the word "highway" wherever it occurs there shall be substituted the words "pedestrian way".
		Section 140 (Penalty for causing certain kinds of danger or annoyance)	For the word "highway" wherever it occurs there shall be substituted the words "pedestrian way" and in sub- section (2) the words "which consists of or comprises a carriage- way" shall be omitted.
		Section 141 (Penalty for placing rope, etc., across high- way)	For the word "highway" in both places where it occurs there shall be substituted the words "pedestrian way".
		Section 142 (Preven- tion of water falling or flowing on to highway)	In subsection (1) after the word "appropriate" there shall be inserted the word "local"; and for the word "highway" wherever it occurs there shall be substituted the words "pedestrian way"; in subsection (2) after the word "appro- priate" there shall be inserted the word "local"; in subsection (3) for the words "an authority" there shall be substituted the words "an appropriate local authority"; and sub- section (5) shall be omitted.

Chapter (1)	Short title (2)	Provisions applied (3)	Modifications (4)
7 & 8 Eliz. 2 c. 25— <i>continued</i>	Highways Act 1959— <i>continued</i>	Section 152 (Restriction on placing rails, beams, etc., over highways)	In subsection (1) for the word "highway" there shall be substituted the words "pedestrian way"; for the words "highway authority for the highway" there shall be substituted the words "appropriate local authority in whose district the pedestrian way is situated"; and the proviso to subsection (2) shall be omitted.

SCH. 1
—cont.

SCHEDULE 2

Sections 29,
31 and 32.

SETTING OUT THE TRUSTS, POWERS AND PROVISIONS UPON, WITH AND SUBJECT TO WHICH THE DESIGNATED SUM IS TO BE HELD IN PURSUANCE OF A DIRECTION GIVEN BY A CONTRIBUTOR UNDER SECTION 29 (POWER TO REQUIRE DESIGNATED SUMS TO BE PAID TO TRUSTEES) OF THIS ACT

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 29 (Power to require designated sums to be paid to trustees) of this Act should apply and the income thereof upon the trusts and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor the trustees may pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine and so that the trustees may if they think fit pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

SCH. 2
—cont.

2. In addition to the powers conferred on them by virtue of the foregoing paragraph 1, during the said period of twenty-one years the trustees may at any time pay or apply the designated sum and the income thereof or any part thereof respectively to or for the benefit of any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death in such manner as the trustees shall in their absolute discretion think fit.

1925 c. 23.
1952 c. 64.

3. Subject as aforesaid, the designated sum and the income thereof or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925 as amended by the Intestates' Estates Act 1952 or any statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent and so that such persons if more than one shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts and subject to the conditions therein contained.

4. In this schedule the expressions " grandparent " and " issue " shall be construed as if the step-child, adopted child or illegitimate child of any person was that person's child, and " issue " includes issue in any degree.

SCHEDULE 3

Section 50.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED TO THIS ACT OTHER THAN SECTION 39

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PART IV OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint, &c.
329	Saving for certain provisions of the Land Charges Act, 1925. 1925 c. 22.

PART III

SECTION APPLIED TO SECTION 6 AND PART IV OF THIS ACT

Section	Marginal note
293	Recovery of expenses, &c.

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